

his declaration, Hedberg declares that he never made the representations alleged, that the deposit was handled as agreed (§ 5), that his son was qualified (§ 7), that Plaintiff misconstrued the promised reimbursement (§ 8), and that “[e]verything [Plaintiff] invoiced for was completed” (§ 10).

However, the use of a declaration is improper on a motion to strike. The court must read allegations of a pleading subject to a motion to strike “as a whole, all parts in their context, and assume their truth.” (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Challenging the truth of the allegations is a matter for summary judgment, not a motion to strike. Excluding the Hedberg Declaration, Defendant has presented no proper grounds on the face of the pleading to strike paragraph 77 through 85 of the FAC.

For punitive damages, a plaintiff must plead allegations of fraud, malice, or oppression with sufficient particularity. (*Hilliard v. AH Robbins Co.* (1983) 148 Cal.App.3d 374, 392.) Generally, claims for punitive damages must be pled with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6-7.) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294(c)(3).) Here, because the FAC has sufficiently pled misrepresentations to support a fraud claim, it has also sufficiently pled the basis for damages.

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CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE (CEQA)

Tentative Ruling: Hearing continued on court’s own motion to August 5, 2026 at 8:30 a.m., Department PS2.

No further briefing will be permitted.